

a task entrusted to the boards. This task could not be transferred or delegated, in whole or in part, to the parties, let alone just one of them (see also T.433/11).

7.10.4 Signing of minutes

According to R.124(3)EPC, the minutes shall be authenticated by the employee responsible for drawing them up and by the employee who conducted the oral proceedings or taking of evidence, either by signature or by any other appropriate means.

In case T.2076/11 the minutes were signed by a director rather than by the chairman who had presided over the oral proceedings before the opposition division. This was a substantial procedural violation.

7.10.5 Refusal to record statement not an infringement of the right to be heard

According to T.1055/05 the refusal of the division to record statements made by a party at the oral proceedings could not constitute an infringement of the right to be heard.

7.11. Presence of assistants during deliberations of the board

According to Art. 19(1), second sentence, RPBA 2020 only members of the board may participate in the deliberations; the chairman may, however, authorise other officers to attend. In T.857/06 the board stated that in several EPC contracting states the judicial work of courts, in particular supreme courts and constitutional courts, is supported by assistants. Also the active involvement of assistants in preparing the ground for judicial decisions appeared to be widely accepted. In accordance with this practice, a limited number of assistants supports the EPO's boards of appeal. The board concluded that the discretion under Art. 19(1), second sentence, RPBA 2007 may be exercised to allow the board's assistant to attend and to take part in the deliberations.

8. Costs

8.1. Apportionment of costs

A different apportionment of costs may be ordered in accordance with Art. 104 EPC and Art. 16 RPBA 2007, if a party, for example, withdraws a request for oral proceedings, asks for their postponement, or fails to attend them (see chapter III.R.2.2. "Acts or omissions prejudicing the timely and efficient conduct of oral proceedings").

8.2. Interpreting costs during oral proceedings

For more information, see chapter III.F.3. "Derogations from the language of the proceedings in written proceedings and in oral proceedings". Under R.4(1)EPC (R.2(1)EPC 1973), "any party to oral proceedings before the EPO may use an official language of the EPO other than the language of the proceedings, if such party gives notice to the EPO at least one month before the date of such oral proceedings or provides for

interpretation into the language of the proceedings" (see also Communication dated 16 July 2007, OJ SE 3/2007, 118).

In T 473/92 the respondents asked the EPO, three days before the oral proceedings, to arrange for and bear the cost of interpreting services. According to the respondents, the period of one month stipulated in R. 2(1) EPC 1973 had not been observed because the EPO had failed to draw their attention to the period of notice mentioned in R. 2(1) EPC 1973. The board, however, decided that the respondents had to bear the costs of interpreting at the oral proceedings. If the parties were being offered a free interpreting service, the EPO should at least be enabled to minimise its costs by having sufficient time to organise the interpreting efficiently. Nor was the EPO under any obligation to draw the respondents' attention to the notice period of one month.

In T 44/92 the board came to the conclusion that if a patent proprietor with several appointed representatives chose to use another official language for the oral proceedings in addition to the language of proceedings, the EPO would not bear the costs of interpreting (R. 2(1) and (5) EPC 1973). See also T 131/07 and T 2696/16.

D. Time limits, documents transmitted by fax, further processing and interruption of proceedings

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1. Calculation, determination and extension of time limits

Time limits in the EPC have two conceptual elements: firstly, a period of time determined in years, months or days, and secondly, a relevant date, which serves as the starting date of the time limit, and from which the period of time is counted (**J 18/04**, OJ 2006, 560). The term "deadline" is broader than the terms "time limit" and "period" as it encompasses any last date for validly performing an action and says nothing about the nature of the underlying time restriction (**J 10/12**).

1.1. Calculation of time limits under Rule 131 EPC

In J 14/86 (OJ 1988, 85) the Legal Board held that the fact that R. 83(2) EPC 1973 (R. 131(2) EPC) fixed the point in time from which all the time limits ran and defined this point as the day following that on which the event giving rise to the time limit occurred, could not be interpreted as requiring the addition of a day to time limits expressed in years, months and weeks, hence the grant of an additional day for reasons of equity. The expiry date of time limits expressed in years, months or weeks was derived from R. 83(3) to (5) EPC 1973 (R. 131(3) to (5) EPC). These paragraphs, in conjunction with paragraph 2 of the same rule, established unequivocally that the time limits were fixed in full years, months and weeks, without any possibility of their being reduced or extended (see also J 9/82, OJ 1983, 57).

In J 13/88 the Legal Board demonstrated how to calculate the 12-month priority period referred to in Art. 87 EPC. The event representing the point in time from which a time limit started to run was the filing date of the application in respect of which priority was claimed, which was 5 May 1986. The period expired in the relevant subsequent month on the day which had the same number as the day on which the said event occurred, which was 5 May 1987 (R. 131(2) and (4) EPC).

T 2056/08 concerns the calculation of the period for filing an appeal when combined with a ten-day period for postal delivery. The board noted that the two-month period stipulated in Art. 108 EPC started from the day of the presumed or actual notification. If any rule of thumb could be suggested to calculate the appeal period, it should be "ten days plus two months" rather than "two months plus ten days."

R 18/10 concerned the calculation of the two-month time limit under Art. 112a(4) EPC. The relevant decision had been posted on 31 August 2010 and the actual notification occurred on 6 September 2010. According to R. 131(2) EPC, where a procedural step is a notification, the relevant event shall be the receipt of the document notified, unless otherwise provided. According to R. 126(2) EPC, in cases where notification is effected by registered letter such a letter is deemed to be delivered to the addressee on the tenth day following its posting. Therefore, regardless of the fact that actual notification occurred on 6 September 2010 the time limit ended pursuant to R. 126(2) EPC on 10 November 2010.

For events which trigger the start of a time limit in connection with re-establishment of rights, see below chapter III.E.4.1.1 "Two-month time limit from the removal of the cause of non-compliance"; for "notification" as an event which triggers the start of a time limit, see chapter III.S.; for the relevant event for calculating the time limit under Art. 78(2) EPC 1973 (R. 38 EPC), see J 13/04.

1.2. Determination and extension of periods under Rule 132 EPC

1.2.1 Relevant criteria when time limits are extended upon request (R. 132(2), second sentence, EPC)

According to R. 132(2), second sentence, EPC (R. 84, second sentence, EPC 1973), in special cases, a certain period may be extended upon request. This provision gives discretionary power to departments of the EPO to decide on the request (T. 954/98 of 9 December 1999, J. 12/07, J. 29/10). The Guidelines set out examples of special cases, see Guidelines E-VIII, 1.6 – March 2022 version. Only a narrow definition of acceptable grounds for further extensions of time limits beyond a total period of six months is justified (J. 12/07, J. 29/10, see also T. 79/99).

In T. 79/99 the board held that when considering requests for additional time, it would take into account not only any reasons put forward but also the number of previous extensions (if any), the views of the other party or parties (if known), the effect of delays on other appeals pending before it and the general principle that all delays are to be avoided where possible.

The application of Art. 120 EPC 1973 and R. 84 EPC 1973 to cases where the time limits had expired before the entry into force of EPC 2000 is considered in J. 12/07.

1.2.2 Applicability of Rule 132 EPC to the Rules relating to Fees

In case J. 7/07 the Receiving Section had given the appellant a period of one month to submit evidence and pay the surcharge under Art. 8(4) RFees. The appellant argued that this one-month time limit was too short and amounted to a substantial procedural violation as it was not in compliance with R. 84 EPC 1973. Though R. 84 EPC 1973 referred only to the Convention and the Implementing Regulations, the board concluded that R. 84 EPC 1973 applied to the time limit in the then Art. 8(4) RFees.

1.3. Extension of time limits ipso jure on account of public holidays or dislocation in delivery of mail (Rule 134 EPC)

1.3.1 Public holidays (Rule 134(1) EPC)

According to R. 134(1) EPC, if a period expires on a day on which one of the filing offices of the EPO is not open for receipt of documents or on which mail is not delivered there, the period shall extend to the first day thereafter on which all the filing offices are open for receipt of documents and on which mail is delivered. This also applies to periods concerning payments (J. 1/81).

1.3.2 General dislocation or interruption in delivery or transmission of mail in a Contracting State (R. 134(2) EPC)

R. 134(2) EPC provides for a time limit to be extended if it expires on a day on which there is a general dislocation in the delivery or transmission of mail in a contracting state or